

Legal Standard

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Cal. Rules of Court, rule 3.1362(a), (c), (e). The requisite forms must be served “on the client and on all parties that have appeared in the case.” Cal. Rules of Court, Rule 3.1362(d).

Analysis and Conclusion

Attorney Workman represents Plaintiffs Julie Swan and Allan Sword. Workman moves to be relieved as counsel, citing irreconcilable differences between Counsel and Plaintiffs. No opposition has been filed.

Workman has filed Judicial Council Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Workman seeks to be relieved as counsel for Plaintiffs on the grounds that there has been a breakdown in the attorney-client relationship. The Court finds this to be proper grounds for withdrawal. See *Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (a breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw).

The Court notes within the past 30 days, Plaintiff's address was confirmed to be current by counsel through: (1) mail, return receipt requested; (2) Plaintiffs have provided the address in discovery responses as a current address in another matter Counsel's firm represents Plaintiffs; and (3) Plaintiff has been served electronically. The trial date is set for November 18, 2026, and the next Court appearance is the Mandatory Settlement Conference set for August 17, 2026, which should be sufficient time for Plaintiffs to retain new counsel.

However, counsel has not served all parties in this action, namely Defendants, as required by California Rules of Court, Rule 3.1362(d). Accordingly, the motion is denied without prejudice. Moving party shall give notice and provide a proof of service of such.

7. CU0001584 Matthew Coulter vs. Mark Olsen et al

Plaintiff Matthew Coulter's unopposed motion for leave to file a third amended complaint is granted. Plaintiff is to file his Third Amended Complaint within ten (10) days of the hearing date on the motion, April 27, 2026.

Legal Standard

The Court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any

party, or correcting a mistake in the name of a party, or a mistake in any other respect. Code Civ. Proc. § 473(a)(1).

“Public policy dictates that leave to amend be liberally granted.” *Centex Homes v. St. Paul Fire & Marine Ins. Co.* (2015) 237 Cal.App.4th 23, 32. “Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial ... this policy should be applied only ‘where no prejudice is shown to the adverse party. A different result is indicated ‘where inexcusable delay and probable prejudice to the opposing party’ is shown.” *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487 (internal citations and quotation marks omitted).

A motion to amend a pleading must include (1) a copy of the proposed amendment or amended pleading which must be serially numbered to differentiate it from previous pleadings or amendments and (2) a statement of what allegations in the previous pleading are proposed to be deleted or added. Cal. Rules of Court, Rule 3.1324(a). These changes should identify by page, paragraph, and line number where the allegations added/removed are located.

The motion shall also be accompanied by a declaration attesting to (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) why the request for amendment was not made earlier. Cal. Rules of Court, Rule 3.1324(b).

In ruling on a motion for leave to amend a pleading, the court does not consider the merits of the proposed amendment, because “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048. While the trial court may deny a motion for leave to amend on grounds that, e.g., the party seeking the amendment has caused unreasonable delay in doing so, it probably abuses its discretion if it denies any such motion in the absence of a finding of prejudice to the opposing side. See *Thompson Pacific Construction, Inc. v. City of Sunnyvale* (2007) 155 Cal.App.4th 525, 545.

Analysis

The Court finds Plaintiff has sufficiently demonstrated the granting on the instant motion is warranted.

Plaintiff attaches his Third Amended Complaint to motion as required by Cal. Rules of Court, Rule 3.1324(a). Dwyer Decl., Ex. 1. The proposed Third Amended Complaint is red-lined to show where the allegations added/removed are located. *Id.* Plaintiff states the factual allegations in the Complaint which are proposed to be added. Dwyer Decl., ¶ 3. Plaintiff also states the claim and damages which have been amended. Dwyer Decl., ¶¶ 4-5. Plaintiff explains the purpose of the amendments is to add factual allegations, a claim under the Bane Act, and amend his damages claims to broaden his claim for emotional distress. Dwyer Decl., ¶¶ 3-5. Plaintiff’s counsel declares the proposed changes could not have been made earlier because they are largely based on discovery which occurred in December 2025. Dwyer Decl., ¶¶ 3-4. The need for amendment to the damages claim was identified because of discovery disputes between the

parties. Dwyer Decl., ¶ 5. Plaintiff's counsel associated provided Defendants' counsel with a copy of the proposed Third Amended Complaint on February 12, 2026, and filed the present motion on February 24, 2026. Anderson Decl., ¶ 6.

The requirements of California Rules of Court, Rule 3.1324(a)-(b) are satisfied. Requests to amend pleadings are to be liberally considered. No trial date has been set and the motion is unopposed. Accordingly, the court finds no prejudice to Defendant. Moreover, the delay in seeking to amend is not unreasonable given the date of discovery conducted leading to the amendments. Thus, Plaintiff's motion for leave to amend is granted. Plaintiff is to file its third amended complaint within ten (10) calendar days of April 27, 2026.

8. CU0001835 Christopher Holden vs. India Ledward

Appearance required. A notice of conditional settlement was filed on December 2, 2025 indicating a dismissal of this action would be filed by January 12, 2026. Such did not occur. On March 23, 2026, the Court continued the OSC for slightly more than one month based on an indication the conditions of settlement were close to being met with only a signed deed and a payment needing to be received. Now, Plaintiff has filed a CMC statement (despite the matter not being set for CMC) indicating the case is in the very same posture it was in on March 1, 2026. Based on this indication and the lengthy amount of time since the filing of the notice of settlement, the Court is inclined to dismiss this action on its own motion.

9. CU0002393 Bobbie Davida Lowe vs. Benjamin Matteo

No appearance required. On the Court's own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to June 8, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date. The Court notes a previous 60-day extension was granted on February 23, 2026. The Court will not be inclined to grant a further extension. The Court also notes, no attempts to serve were made between October of 2025 and late March of 2026, a period of approximately five (5) months.

10. CU0002429 Hunter, Carol Jean v. Rodriguez, Linda

Appearances required for the Order to Show Cause re Contempt – Arraignment.

**11. CU0002513 TRUCKEE CROSSROADS S.C., LP, a Delaware limited partnership
vs. SIERRA CREST CORPORATION, a Nevada corporation et al**

No appearances required. In light of the proofs of service of the Summons and Complaint filed on February 13, 2026 combined with an Answer now being filed, the OSC re Dismissal is VACATED on the Court's own motion.

12. CU0002630 In Re Escobedo, Noe Osbaldo Luna

Appearance required to ensure no objections are made at the time of hearing requiring response from Petitioner. The Court is inclined to grant the name change request based on no objections